

No certificate may be issued unless a completed application form has been received (14 CFR 91. 101. and 105).



US Department of Transportation
Federal Aviation Administration

**APPLICATION FOR
CERTIFICATE OF WAIVER
OR AUTHORIZATION**

OMB Control Number: 2120-0027 / Expiration Date: 03/31/2024

APPLICANTS - DO NOT USE THESE SPACES

Flight Standards Office
AFG-400-CAE-FSDO-13

Date **SEP 28 2026**

Action

☒ Approved

☐ Disapproved – "Explain under "Remarks"

Signature of authorized FAA representative

H. Todd Clamp

H. Todd Clamp Aviation Safety Inspector-Operations

INSTRUCTIONS

Submit this application to the responsible FAA Flight Standards district office.

Applicants requesting a Certificate of Waiver or Authorization for an aviation event must complete all the applicable items on this form and attach a properly marked 7.5 series Topographic Quadrangle Map(s), published by the U.S. Geological Survey (scale 1:24,000), of the proposed operating area. The map(s) must include scale depictions of the flightlines, showlines, race courses, and the location of the air event control point, Police dispatch, ambulance, and fire

fighting equipment. The applicant may also wish to submit photographs and scale diagrams as supplemental material to assist in the FAA's evaluation of a particular site.

Application for a Certificate of Waiver or Authorization must be submitted 45 days prior to the requested date of the event.

Applicants requesting a Certificate of Waiver or Authorization for activities other than an aviation event will complete items 1 through 10 only and the certification, item 17, on the reverse.

1. Name of organization

Mount Washington Soaring Association

2. Name of responsible person

James David

3. Permanent mailing address

House number and street or route number
P.O. Box 956 (Franconia Airport, 1B5)

City

Franconia

State and ZIP code

NH, 03580

Telephone Number

(603) 921-1588

4. State whether the applicant or any of its principal officers/owners has an application for waiver pending at any other office of the FAA.

No

5. State whether the applicant or any of its principal officers/owners has ever had its application for waiver denied, or whether the FAA has ever withdrawn a waiver from the applicant or any of its principal officers/owners.

No

6. 14 CFR section and number to be waived

91.135 (b) and (c)

7. Detailed description of proposed operation (Attach supplement if needed)

This is a renewal of a previously approved waiver for flight in Class A airspace for aircraft without ADS-B. We request this waiver because when we operate within the ZBW ARTCC Letter of Agreement, we are the sole occupants of the airspace and therefore have a equivalent level of safety. ZBW ARTCC restricts any other operations while the airspace is open. We request this waiver be coterminous with our current LOA, which expires on 12/31/2026. LOA attached.

8. Area of operation (Location, altitudes, etc.)

Mount Washington Glider Operation Area as defined in the Letter of Agreement with ZBW ARTCC, attached to this application.

9a. Beginning (Date and hour)

09/22/2026 00:01

9b. Ending (Date and hour)

09/22/2028 23:59

10. Aircraft make and model (a)

Pilot's Name (b)

Certificate number and rating (c)

Home address (Street, City, State) (d)

SEE ATTACHED LIST

11. The air event will be sponsored by: Mount Washington Soaring Association				
12. Permanent mailing address	House number and street or route number 1251 Easton Road	City Franconia	State and ZIP code NH, 03580	Telephone Number (603) 921-1588
13. Policing (Describe provisions to be made for policing the event.) When the airspace is open, there is an Air Boss who is responsible for maintaining telephone communication with ZBW ARTCC. If the airspace is closed by ZBW ARTCC the Air Boss communicates to the aircraft in the airspace, on the established unicom frequency, that the airspace has been closed. At that point all aircraft must exit the airspace. The status of the airspace must be communicated every 30 minutes. Aircraft must exit the airspace if open status is not verified every 30 minutes. See item 15 below.				
14. Emergency facilities (Mark all that will be available at time and place of air event.) ☐ Physician ☐ Fire truck ☐ Other - Specify _____ ☐ Ambulance ☐ Aircraft rescue vehicle _____				
15. Air Traffic control (Describe method of controlling traffic, including provision for arrival and departure of scheduled aircraft.) All aircraft entering the airspace are required to monitor the unicom frequency established when the airspace is opened, typically this frequency is 123.30. According to the Letter of Agreement, during the operation, every 30 minutes a broadcast in the clear is to made to the aircraft operating in the airspace reiterating that the airspace is open. In absence of this communication, all aircraft must personally reestablish the airspace status is open with the Air Boss, or they must leave the airspace immediately.				
16. Schedule of Events (include arrival and departure of scheduled aircraft and other periods the airport maybe open.)				
Hour (a)	Date (b)	Event (c)		
If sufficient space is not available, the entire schedule of events may be submitted on separate sheets, in the order and manner indicated above.				
Please Read The undersigned applicant accepts full responsibility for the strict observance of the terms of the Certificate of Waiver or Authorization, and understands that the authorization contained in such certificate will be strictly limited to the above described operation.				
17. Certification - I CERTIFY that the foregoing statements are true.				
Date 9/6/2026	Signature of Applicant James David			
Remarks A copy of the current ZBW ARTCC Letter of Agreement, authorization is attached.				

U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL AVIATION ADMINISTRATION

CERTIFICATE OF WAIVER OR AUTHORIZATION

ISSUED TO

**MT WASHINGTON SOARING ASSOCIATION
JAMES DAVID**

ADDRESS

**PO BOX 956
FRANCONIA AIRPORT 1B5
FRANCONIA, NH 03580**

This certificate is issued for the operations specifically described hereinafter. No person shall conduct any operation pursuant to the authority of this certificate except in accordance with the standard and special provisions contained in this certificate, and such other requirements of the Federal Aviation Regulations not specifically waived by this certificate.

OPERATIONS AUTHORIZED

Area of Operations:

Mt Washington Soaring Association operations in the Mt Washington Glider Area Air Traffic Control Assigned Airspace as defined in Attachment B. Various glider activities will participate in the assigned airspace above FL180 (Class A Airspace) in coordination with Boston Air Route Traffic Control Center (ARTCC).

LIST OF WAIVED REGULATIONS BY SECTION AND TITLE

14 CFR Section 91.135 (b) & (C)

STANDARD PROVISIONS

1. A copy of the application made for this certificate shall be attached to and become a part hereof.
2. This certificate shall be presented for inspection upon the request of any authorized representative of the Administrator of the Federal Aviation Administration, or of any State or municipal official charged with the duty of enforcing local laws or regulations.
3. The holder of this certificate shall be responsible for the strict observance of the terms and provisions contained herein.
4. This certificate is nontransferable.

NOTE— This certificate constitutes a waiver of those Federal rules or regulations specifically referred to above. It does not constitute a waiver of any State law or local ordinance.

SPECIAL PROVISIONS

Special Provisions Nos. 1 to 17, inclusive, are set forth on the attached pages.

This certificate is effective from **09/22/2026-00:01** hours local to **09/22/2028-23:59** hours inclusive and is subject to cancellation at any time upon notice by the Administrator or his authorized representative.

AFG-400-CAE-FSDO-13

BY DIRECTION OF THE ADMINISTRATOR

STEVEN J

PETROSSIAN

**STEVE S. PETROSSIAN
MANAGER, SO FSDO-13**

Digitally signed by
STEVEN J PETROSSIAN
Date: 2026.09.28
13:31:44 -04'00'

**MT Washington Soaring Association
James David
PO Box 956
Franconia Airport 1B5
Franconia, NH 03580**

Attachment A

SPECIAL PROVISIONS

Air Traffic Control Assigned Airspace (ATCAA)

1. The FAA has the authority to cancel the Certificate of Waiver (CoW) or delay any activities if the safety of persons or property on the ground, or in the air, is in jeopardy, or if there is a violation of the terms of the CoW.
2. **James David** or the current responsible person for the Mt Washington Soaring Association (MWSA), has been determined to be competent and knowledgeable concerning the terms and provisions of this Certificate of Waiver, and the aviation event governed by it. **James David** or the current responsible person for the Mt Washington Soaring Association (MWSA), must be responsible to the Federal Aviation Administration (FAA) for the safe conduct of the operations within the ATCAA.
3. **James David** or the current responsible person for the Mt Washington Soaring Association (MWSA), must ensure that pilots are thoroughly briefed on MWSA Glider Operations Training and the special provisions of the CoW before beginning operations within the established ATCAA.

A: The MWSA training (Attachment E) is incorporated into this CoW and becomes a special provision, thereof. Action Contrary to the terms, controls, procedures and conditions pertaining to safety set forth in the FAA approved procedures are grounds for cancellation of this CoW.

B: No person may conduct operations within the ATCAA, as described in the CoW, unless that person has signed a statement of understanding (Attachment D) stating that they have received training on the provisions of the CoW.

4. All pilots operating in the ATCAA must provide the requested data to establish qualifications and airworthiness to **James David** or the current MWSA responsible person, and provide the Portland, Maine, Flight Standards District Office (PWM FSDO) on an annual basis a copy of the current Attachment C and D.

NOTE: FAA Checklists, Status Forms and Job Aids can be used to gather data in advance to establish pilot qualifications and aircraft airworthiness.

NOTE: CoW special provisions never supersede aircraft airworthiness operating limitations. Pilots should review their aircraft operating limitations prior to operating in the ATCAA, to ensure they are familiar and can comply with the requirements as specified.

5. Persons or aircraft not appearing on the CoW application and subsequently added to the CoW, may not participate without specific approval by **James David**, or the current responsible person. Operational occurrences outside of this provision must be reported to the PWM FSDO. Proof of appropriate qualifications for crewmember(s) and an airworthy aircraft is required before the operations can be conducted in the ATCAA.

6. Before commencing flight operations, the current MWSA responsible person, or a MWSA representative delegated by him/her, is authorized to activate and deactivate the ATCAA, and must also assume responsibility for reviewing all published NOTAMs, TFRs, or Special Activity Airspace pertinent to the Mt Washington Glider Area Air Traffic Control Assigned Airspace (ATCAA.)

7. Glider flight requiring CoW must be confined to the area designated on the pictorial chart, and as depicted on a sectional chart attached to the CoW and defined in Attachment B.

8. Notification must be made to the Boston ARTCC Mission Coordinator at (603) 879-6663 between 1 and 3 hours prior the beginning of activity in the ATCAA. Boston ARTCC must also be notified at the termination of soaring activities within the ATCAA.

9. The person(s) authorized to activate and deactivate the ATCAA described in Special Provision 8 is the current MWSA responsible person, or a MWSA representative delegated by him/her.

10. Be equipped with a two-way radio and maintain communication with Boston ARTCC on 123.3.

11. Ensure the glider has an operational 4096 transponder with altitude reporting, and operate the transponder on assigned codes, unless deviation is authorized by Boston ARTCC LOA in accordance with 14CFR Part 91.135 (c).

12. Utilize GPS to assist in remaining within the assigned ATCAA.

13. Comply with the provisions of 91.211(a) Supplemental Oxygen.

14. No person may operate in the ATCAA with less than 5 miles visibility and clear off clouds.

15. All pilots operating within the ATCAA must maintain VFR at all times, and must be responsible for seeing and avoiding all conflicting traffic.

16. Operations in the ATCAA must be conducted only during daylight hours.

17. **James David**, or the current responsible person for the MWSA or delegated representative, is responsible for halting or canceling activity in the ATCAA if, at any

time, the safety of persons or property on the ground or in the air is in jeopardy, or if there is a failure to comply with the terms or conditions of this CoW.

Note: *This Certificate of Waiver constitutes a waiver of only those regulations stated, to the degree and for the period specified in the Certificate of Waiver. The Certificate of Waiver does not constitute a waiver of any state law or local ordinance. Should the proposed operation conflict with any state law, local ordinance, or required permission of local authorities or property owners, it must be the applicant's responsibility to resolve the conflict. The provisions of the waiver must apply, regardless of the statements contained in the application for Certificate of Waiver. The waiver must be considered void upon completion of the authorized schedule of events, or at the latest time shown on the face of the Certificate of Waiver, whichever occurs first.*

STEVEN J
PETROSSIAN

Digitally signed by
STEVEN J PETROSSIAN
Date: 2026.09.28
13:32:21 -04'00'

Steve J. Petrossian
Manager, SC FSDO-13

Date



U.S. Department of Transportation
Federal Aviation Administration

Memorandum

Date: November 18, 2025

To: James David, Soaring Society of America

From: Shelly L Fogarty, Boston District Support Manager,
Airspace and Procedures, Boston ARTCC, ZBW-530

Prepared by: Jenny Shepherd, ZBW-530.1

Subject: 2025 LOA Revalidation: Boston ARTCC and Soaring Society of America

SHELLY L FOGARTY Digitally signed by
SHELLY L FOGARTY
Date: 2025.11.20
11:52:49 -05'00'

This memo acknowledges that Boston Air Route Traffic Control Center (ARTCC) accepts that Soaring Society of America declared that they wish to continue the joint LOA dated October 14, 2021.

Boston ARTCC will continue to honor this agreement for one year with no changes to the document. The next revalidation will be due by December 31, 2026.

The Soaring Society of America provided the following information, as per the LOA:

Company: Soaring Society of America

POC Name: James David

Address: P.O. Box 898, Franconia, NH 03580

Phone: 603-921-1588

Email: tangofour@gmail.com

Statement of Use: The Soaring Society of America wishes to continue this airspace relationship with Boston ZBW ARTCC.

Please note, we received your request to amend the LOA to include the opening of airspace by radio communication. That is not possible at this time, the LOA needs to keep the procedures currently in place for opening the airspace.

Attachment B

Boston Air Route Traffic Control Center (ARTCC) / Soaring Society Of America - Region 1

LETTER OF AGREEMENT

EFFECTIVE: October 14, 2021

SUBJECT: CLASS A GLIDER OPERATIONS MT. WASHINGTON, NH

1. **PURPOSE.** To define responsibilities, coordination and communication requirements for Class A Airspace glider operations in the Mt. Washington Glider Area.
2. **CANCELLATIONS.** Boston Center/Soaring Society of America Region 1 Letter of Agreement dated October 5, 2018.
3. **SCOPE.** The procedures outlined herein apply to glider operations conducted in Class A Airspace.
4. **AUTHORIZATION.** In conjunction with all other procedures, this letter authorizes the Soaring Society of America – Region 1 to deviate from FAR §91.225(a) – ADS-B requirements for Class A airspace, and from FAR § 91.215 – ATC Transponder and Altitude Reporting Equipment and Use paragraphs (a) and (b). This authorized deviation is not applicable to aircraft that currently or in future meet these requirements. Deviation from the requirements of FAR § 91.135 with exception is authorized in accordance with the current Certificate of Waiver issued by the Flight Standards District Office.

***NOTE:** This Letter of Agreement (LOA) does not grant nor imply the waiver of, or an authorization to deviate from, any part or subpart of the Code of Federal Regulations (CFR). All applicant(s) and/or operator(s) will coordinate with the responsible Flight Standards District Office in advance of planned or recurring VFR flight in Class A airspace. Air Traffic Control (ATC) authorization to deviate from FAR§91.225(a) and FAR § 91.215 is expressly allowed by statute.*

5. **RESPONSIBILITIES.** Soaring Society of America - Region 1 must ensure:
 - a. All pilots operating in Class A Airspace within the Mt. Washington Glider Area:
 - (1) Are familiar, and comply with, all provisions of this agreement.
 - (2) Conduct all glider operations under Visual Flight Rules (VFR).
 - (3) Contain all flight activity within the lateral confines of the authorized area.
 - (4) Remain at and below the maximum approved flight level altitude (FL) for the authorized area.
 - (5) Maintain separation from all other gliders operating within the authorized area.
 - b. No student pilot acts as Pilot-in-Command while operating in Class A Airspace.
 - c. Telephone communications are available between Boston ARTCC and Soaring Society of America - Region 1 during the authorized time periods of the glider area.

- d. Notify Boston ARTCC if the glider area is not used as authorized or if all glider operations have terminated prior to the end of the airspace authorization.

6. PROCEDURES:

a. Soaring Society of America - Region I must:

- (1) Contact the Boston ARTCC Mission Coordinator (MC) at (603) 879-6663 between one and three hours prior to the requested authorization for the Mt. Washington Glider Area. This notification must include the operational telephone communication number(s), requested maximum ceiling altitude (FL) for the operation, the activation and termination times and the number of gliders involved with the request.

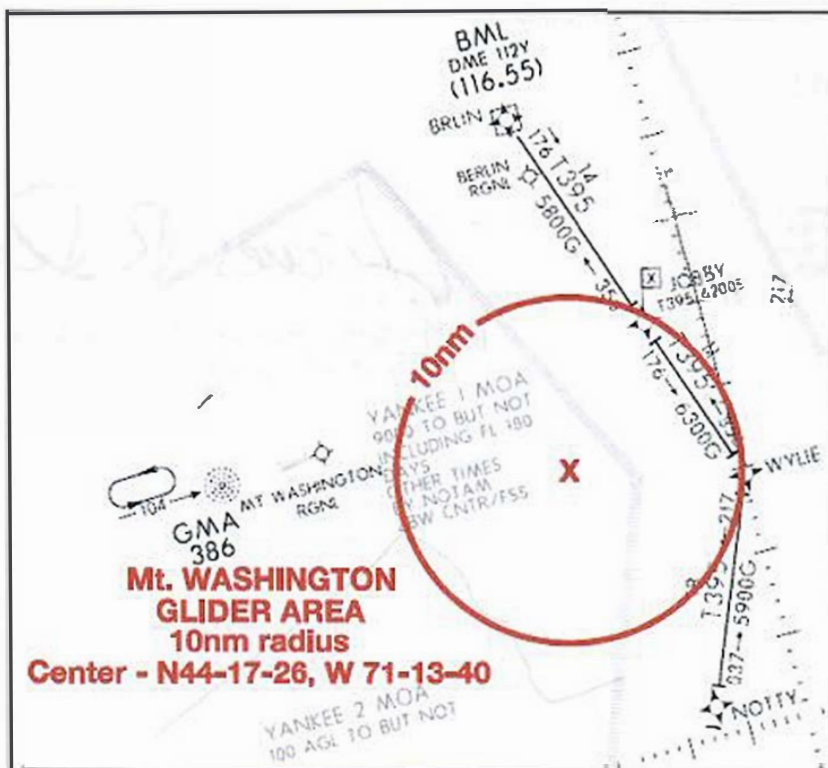
NOTE: Once operating areas have been preapproved through the MC, requests for additional altitudes stratus may be made with Boston ARTCC via sector frequency from within the approved operating areas.

- (2) Ensure that all pilots operating in Class A Airspace are advised of the authorized glider area, the maximum altitude for the area and the time period of the authorization.
- (3) Ensure that air/ground communication exists with all flights utilizing the glider area.
- (4) Broadcast the status of the glider area every 30 minutes on frequency 123.3. If a pilot operating in the Mt. Washington Glider Area does not receive this transmission, they must immediately exit Class A Airspace.
- (5) In the event an operational recall of the glider area is needed by Boston ARTCC, all aircraft must exit Class A Airspace within 20 minutes of this notification.
- (6) Ensure all gliders are clear of Class A Airspace prior to the authorization's termination time.

b. Boston ARTCC must:

- (1) Authorize Soaring Society of America - Region I's request for use of the Mt. Washington Glider Area based on operational requirements and may issue restrictions as necessary to accommodate the request.
- (2) May authorize an alternate time or altitudes if the request for the glider area cannot be approved.
- (3) Apply 5 NM lateral and appropriate IFR vertical separation to non-participating aircraft from the authorized glider area.
- (4) Contact Soaring Society of America - Region I as soon as possible if an operational recall of the glider area authorization is required.

7. **MT. WASHINGTON GLIDER AREA** is defined as a 10NM radius of 44-17-26N / 071-13-40W:



- 8. ANNUAL REVALIDATION:** Annually, a revalidation of this Letter of Agreement must occur. An email or written request via certified mail must be submitted to Boston ARTCC no later than September 15 each year. The request must contain the following:
- a. Organization name, current address and telephone number, as well as a point of contact for this agreement.
 - b. A brief statement that Soaring Society of America - Region 1 intends to continue operations under this Letter of Agreement for another year and any comments regarding this agreement.
 - c. The request must be sent by email to: **AJT-ZBW-Airspace@faa.gov** or via certified mail to:

Boston ARTCC
Attn: ZBW-530
35 Northeastern BLVD
Nashua, NH 03062
- d. The Boston ARTCC Air Traffic Manager will issue approval/disapproval, via email or certified mail, of the validation request by December 31 of each year.
 - e. Failure to comply with revalidation procedures may result in a termination of this Agreement.

Boston ARTCC
Attn: ZBW-530
35 Northeastern BLVD
Nashua, NH 03062

9. **TERMINATION:** Soaring Society of America - Region 1 or Boston ARTCC may terminate this agreement at any time. Termination must be accomplished by email or in writing via certified mail, with an explanation of the termination.

10. SIGNATORIES:

TARAH R
PARK

Digitally signed by
TARAH R PARK
Date: 2021.10.14
09:43:05 -04'00'

Tarah Park
Air Traffic Manager
Boston ARTCC


Jim David
President – Franconia Soaring Association
CFIG SSA Region 1

Last Name	First Name	Personal Ship Type	N-number	Pilot Certificate #	I have read and understand the LOA procedures
Kelley	Glen	JS-3 Jet	N913GK	3367100	yes
Roelke	Rick	Duo Discus T	N717PL	3073841	yes
David	James	ASW-27	N127RK	2841819	yes
Waitekaitis	Steven	ASW 27	N27HH	2722924	yes
Sherrill	David	ASW 28	N128RF	3729208	yes
Orsisi	Tom	LS-10	N39JF	3728050	yes
Poodts	Mauricio	DG 300	N281SW	4396697	Yes
Phillips	Emilie	ASW-27	N27HF		
Stokes	Chris	Ls8	N818RS	3460213	Yes
Tauber	David	ASW-20	N230DB	3745201	Yes
Howe	Nelson	JS-3 Jet	N122nh	2583978	yes
Mileski	Bill	Pik-20B	N6UA	3513840	yes
Van de Velde	Thomas	ASG-29	N232FG	3723437	yes
Foertsch	Eric	ASW-27	N127FP	3073914	
Lumley	Andy			4507392	yes
Joyce	David	Ventus-2c	N340TW	3427830	yes
Lynskey	Stephan	HP304C	N304WN	3133645	yes
Keller	Klaus			4535237	yes
John	Beckley	ASW 24	N84RF	4238565	Yes
Bill	Batesole	Carat A	N30PF	2173062	Yes
Chow	Tim	HPH304cz	N304BU	3247628	Yes
Mettinen	Kari	DG-600/18	N601ED	4007137	Yes
Bunnell	Shawn	Asw 20	N46GH	5002863	yes
Brisson	Mark	DG-300	N802DG	3306942	Yes
Schine	Toby		--	4306379	Yes
Baxter	David	LS4b	N86NT	41581056	Yes
Jenkyn	Skip	ASW-24	N114JS	2526637	Yas
Hanlon	Greg	JS1-B	N3OFF	3661186	Yes
Natkiel	Paul	LS4a	N97SL	321386786	Yes
Braner	Moshe			3530909	Yes
Granzow	Jared	JS3 Jet	N951Dg	3321809	
Zacharski	Robert	SGS 1-35	N34173	2770720	Yes
Ludeman	Evan	JS-1C	N100NR	3830931	yes
Kozak	Andy	JS-1C			
Bernard	Jeffrey			30509873	Yes
Cote	Matthew	SHP-1	N473		
Lysy	David	HpH 304CZ	N304JD		Y
Cilley	Sonny			2509971	Y
Keller	Cathy	ASG-29 18m	N300AT	4046997	TBD
Seltzman	Andrew	--	--	3772355	yes

Last Name	First Name	Personal Ship Type	N-number	Pilot Certificate #	I have read and understand the LOA procedures
MacMonagle	Dan	ASW 20	N747EA	3712364	yes
Pauley	Jess	ASH 31 Mi	N898MM	3399690	y
Kelley	Peter	Discus CS	N416HG	4043971	y